

File number: DOS-2023-03281

Subject: settlement decision following a complaint regarding the use of cookies by Mediafin (website "De Tijd")

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, sole presiding chairman;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG";

Considering the internal rules of procedure, as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

Complainant:

Mr. X, residing at [...], represented by NOYB – European Center for Digital Rights, located at [...], hereinafter "the complainant", and

Settling party: Mediafin NV, located at [...], hereinafter "the settling party".

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I. Procedure prior to the settlement

I.1.

The complaint

1.

On July 19, 2023, the complainant, through his representative, filed a complaint with the Data Protection Authority ("GBA") against the settling party.

2.

The subject of the complaint concerns various elements related to the placement of cookies on the website <https://www.tijd.be/>. The complaint refers to the legislation relevant to the complainant regarding the granting of consent. The complaint makes a connection with "misleading cookie banners and 'dark patterns'". The complaint also refers to reports and communications from both the European Data Protection Board and the Belgian GBA related to the obligations when placing cookies that process personal data.

3.

Specifically, the complaint highlights three alleged harmful practices on the aforementioned website. First, the fact that there is "no 'refuse' option at the first level of the consent banner." Second, that the 'cookie banner' allegedly uses "misleading button colors." As a third grievance, the complaint states: "It is not as easy to withdraw consent as it is to give consent."

4.

On August 3, 2023, the First Line Service of the GBA contacted the complainant requesting information "about the complainant's interest in filing the complaint."

5.

On August 24, 2023, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the WOG and was forwarded to the Dispute Chamber based on Article 62, § 1 of the WOG.

6.

On September 1, 2023, the representative of the complainant provided the First Line Service with a document further explaining the complainant's interest.

7.

In the document of September 1, 2023, the representative of the complainant refers to the admissibility conditions in the WOG – which the complaint meets – and states that it is "not clear [to the representative] why the First Line Service of your authority requests further substantiation of the complainant's interest in filing the complaint." The representative points out that the complainant's data

1 During the procedure, it was sometimes mentioned that the complaint was filed on July 18, 2023, as stated in the complaint itself by the complainant, but formally, the complaint only reached the GBA the following day.

2 In particular, Article 10/2 of the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, B.S. 05/09/2018 (as implementation of provisions from the "e-Privacy Directive") and Article 6.1.a. GDPR.

3 In accordance with Article 61 of the WOG, the Dispute Chamber hereby informs the parties that the complaint has been declared admissible.

4 In accordance with Article 95, § 2 of the WOG, the Dispute Chamber hereby informs the parties that the file regarding this complaint has been transferred to it.

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processed effectively, and that the complainant is considered a data subject within the meaning of the GDPR, and further states: "The complaint therefore does not solely pursue a public interest consisting of the protection of every data subject visiting the website."

8.

The Dispute Chamber does not further investigate the aspects regarding the interest of the complainant, which have already been addressed in the communications between the complainant's representative and the First-Line Service, in the interest of an efficient process.

I.2. The settlement proposal

9.

On September 21, 2023, the Dispute Chamber sends a letter to both the complainant's representative and the settling party, informing the involved parties that it intends to proceed with a settlement proposal in the case, based on Article 95, § 1, 2° WOG. The notification also mentions that the Dispute Chamber considers the deadline for the Inspection Service under Article 96, § 1 WOG to be suspended due to the communication. The parties may, if they wish, review the administrative file from this moment on, which they both subsequently request.

10.

On October 20, 2023, the settlement proposal is transmitted to the settling party and the complainant. The content of this settlement proposal is unchanged and is included in the annex to this settlement decision, forming an integral part thereof. In this settlement proposal, all procedural and substantive conditions are included, as well as the deadlines within which the parties must respond respectively.

I.3. The complainant's response

11.

On October 30, 2023, the complainant's representative sends a letter to the Dispute Chamber. On November 3, 2023, the complainant's representative also sends the letter to the settling party, as it was unclear to the representative that they were also required to deliver the document to the settling party.

12.

In her response to the settlement proposal, the complainant requests clarification and/or adjustments on several "points." The complainant concludes with the following paragraph: "The complainant points out that if the content of the settlement proposal is modified in favor of the defendant [settling party] and/or if the above requests are not (fully) met, the complainant feels compelled to appeal against the final settlement decision."

5 It should be noted, however, that an "erratum" was inserted under section f) since the initial text incorrectly stated "(in this case this does not concern a complaint file)."

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13.

The Dispute Chamber reiterates – in light of a clear decision – the requests of the complainant under

section II of this decision, after which the Dispute Chamber responds concretely to the requests.

14.

The Dispute Chamber responds on November 6, 2023, that the settlement proposal will not be modified in accordance with the requests of the complainant. The Dispute Chamber does indicate that it intends to publish the decision without omitting the identifying details of the settling party in accordance with Article 95, §1, 8° WOG.

I.4. The requests of the settling party and the establishment of the settlement

15.

On November 16, 2023, the settling party provides a response regarding the settlement proposal. They state that they “in principle agree” with the conditions of the settlement proposal but request clarification on several points. The settling party requests clarification regarding the format and essential elements of the “clear document” mentioned in the first and second conditions of the settlement proposal. To clarify, the settling party attaches documents to their letter that they believe could constitute such a clear document based on the adjustments they had already made to the disputed website at that time.

16.

Given the requests for clarification from the settling party, the Dispute Chamber grants an extension of seven days on November 17, 2023, extending the deadline specified under section d) of the settlement proposal.

17.

On November 23, 2023, the Dispute Chamber responds that the clear document provided in the message of November 16, 2023, suffices regarding the first two conditions. The Dispute Chamber confirms that it is no longer necessary to submit the document (or documents) in question after the present settlement decision is made. The Dispute Chamber provides several other clarifications and then states that the settling party has until November 28, 2023, to accept or reject the settlement proposal.

18.

On November 24, 2023, the settling party confirms that they fully agree with all the conditions in the settlement proposal. On the same day, the Dispute Chamber confirms that a settlement has been formally established by the message from the settling party, which will lead to the present settlement decision.

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II. Conditions of the settlement and reasoning for rejected requests

II.1. General considerations

19.

During the settlement procedure, no changes were made to the conditions for the settlement formulated in the settlement proposal; the conditions included in the settlement proposal apply by virtue of the settlement. They are not reiterated in this section and are displayed in the annex to this decision.

20. The Dispute Chamber further clarifies that it does not consider the agreement to a settlement proposal as an admission, which could particularly be used as an aggravating circumstance in determining the sanction for future proceedings before the Dispute Chamber.

21.

The Dispute Chamber reaffirms that the documents submitted by the settling party are sufficient for what was requested under the first and second conditions, regarding the provision of a “clear document” that reflects the technical adjustments.

22.

The Dispute Chamber clarifies that, in light of the adequate procedural course, the settlement procedure has been divided into a settlement proposal on one hand, and a settlement decision on the other. This approach ensures that the procedural starting and ending points are clear for all parties involved, including the possibilities for appeal in these phases through the addition of the appeal clauses. The issuance of a settlement decision also facilitates the transparency of the settlement procedure, as the Dispute Chamber unequivocally opts for such transparency.

23.

Finally, the present decision is a *prima facie* decision taken by the Dispute Chamber in accordance with Article 95 of the WOG based on the complaint submitted by the complainant, in the context of the “preliminary procedure prior to the substantive decision” and is not a substantive decision of the Dispute Chamber in the sense of Article 100 of the WOG.

II.2. The rejected requests of the complainant

24.

The complainant made several requests to the Dispute Chamber, which did not persuade the Dispute Chamber to amend the settlement proposal. The Dispute Chamber will proceed to publish this settlement decision on the website of the Data Protection Authority (see section III of this decision), as also requested by the complainant, which constitutes a separate decision that stands apart from the settlement under Article 95, §1, 8° WOG.

25.

The Dispute Chamber explains below why it does not address the other requests. It should be noted that the reasoning is included in the present decision, so that the motives clearly follow within the generally structured procedural economy.

26.

First, regarding the first condition in the settlement proposal, the complainant requests “to explicitly add that this condition entails that the ‘opt-out’ option must be provided at the same, first ‘level’ as the ‘agree and close’ option.”

- The Dispute Chamber rejects this request for the following reason. It is not clear in what sense this request would yield a different concrete result on the disputed website than the current wording in the first condition. The Dispute Chamber considers that the proposed amendment would not bring about an improvement (cf. section c.1. of the settlement proposal) to the stipulated condition.

27.

Second, regarding the second condition, the complainant requests “to add that the ‘not less (visually) appealing’ representation includes, but is not limited to, that both the ‘opt-out’ option and the ‘agree and close’ option must have the same size, color, shape, contrast, and location of the button/option.”

- The Dispute Chamber rejects this request for the following reason. It is not for the Dispute Chamber, nor for the complainant, to determine that buttons must have (exactly) the same properties. This choice belongs to the data controller. It is true that buttons with exactly the same properties clearly stand equal for granting consent. Conversely, it is not excluded that the data controller opts to present the “opt-out” option more attractively or innovates in the use of colors (which, for example, represent essentially equivalent options) that facilitate the data subject in making their choice. The more generally formulated condition in the settlement proposal regarding the “not less (visually) appealing” representation of the choices is therefore sufficient for the Dispute Chamber.

28.

Third, regarding the third condition, the complainant proposes the following text amendment:

“The respondent commits to develop and implement, within a period of one month, a mechanism on the website of [...] that meets the requirements set forth in the aforementioned policy documents and seeks to achieve an equivalent effect; furthermore, the respondent commits to...

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The respondent is required to ensure that the withdrawal of consent does not involve more steps (in terms of “clicks”) than necessary for granting consent. A permanently visible and visually distinguishable option must be available on all pages of the website to reopen the cookie settings with one click. The same number of steps for withdrawing consent will be counted from the moment the end user reopens the cookie settings. This occurs through an equivalent number of steps as soon as the end user reaches the cookie settings page; this page must be clearly accessible on every page of the disputed website. The technical adjustments made by the respondent in this regard will be documented in a clear document at the time of implementation and sent to the Dispute Chamber and the complainant. Both the execution of the technical implementation and the preparation and forwarding of the document that reflects the implementation will be completed within one month after the settlement decision. (The underlined portions are missing in the current condition three of the

settlement proposal)

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The Dispute Chamber fully rejects this request for modification of the condition for the following reason. The Dispute Chamber acknowledges the complainant's view that they wish for a “permanently visible and visually distinguishable option” on all web pages of the disputed website. The Dispute Chamber, which aims to reach a reasonable and technically feasible settlement, considers that it is not appropriate to require such adjustments through a settlement.

29.

Fourthly, the complainant requests that “an order to cease unlawful processing be added concerning the website,” which should read as follows:

“The respondent commits to delete personal data that is processed due to cookies that have not been placed in accordance with the content of this settlement decision, and that the respondent communicates this obligation to delete to all recipients to whom the personal data has been provided in this context. Proof of this deletion of personal data and the communication of this obligation to delete personal data to all recipients will be documented in a clear document at the time of implementation and sent to the Dispute Chamber and the complainant. Both this deletion of personal data and the communication of this obligation to delete personal data to all recipients and forwarding of the document that reflects the implementation will be completed within one month after the settlement decision.”

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The Dispute Chamber rejects this request for the following reason. The complainant has not addressed the data controller based on the elements available in the administrative file regarding the alleged violation of their rights. The Dispute Chamber therefore considers it inappropriate here and now to propose such a condition, let alone to direct an “order” to the settling party. The complainant is, of course, free to address any data controller regarding which the complainant can exercise their rights within the conditions of the legislation.

30. Fifthly, the complainant requests that an administrative fine be imposed via the settlement “in accordance with Article 83(1) GDPR.”

•

The Dispute Chamber rejects this request for the following reason. The imposition of an administrative fine is a power that can be exercised by the Dispute Chamber based on Article 100, §1, 13° WOG. In this sense, no administrative fine intended by the complainant can be imposed at this stage prior to the substantive examination under Article 95 WOG. It is correct that Article 107 WOG indicates that the legislator intended that with settlements—without clarifying whether this can indeed also be under Article 95 WOG—monetary amounts could also be collected, but this is not a requirement for the instrument of the settlement, as already stated by the Dispute Chamber in the settlement proposal. The settlement aims to reach a general solution for the grievances of the complainant without the need for punitive measures. The Dispute Chamber emphasizes the efficient course of the proceedings in this regard.

31.

Sixthly, the complainant requests that the settlement decision “will include that the defendant [settling party] waives any civil and other claims related to the settlement, for example but not limited to cases of negative reporting regarding the settlement.”

•

The Dispute Chamber rejects this request for the following reason. This does not concern an essential request in light of the grievances of the complainant formulated in their complaint.

32.

Seventhly, the complainant requests that the settlement decision be published on the website of the Data Protection Authority.

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The Dispute Chamber can grant this request, through Section III of this decision.

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III. Publication of the decision

33. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision is published on the website of the Data Protection Authority. The name and personal data of the complainant are omitted, as they are not relevant to the transparency regarding the settlement procedure.

34. However, the Dispute Chamber chooses to publish the names of the representative of the complainant and the settling party. It is indeed in the public interest that citizens can be informed, in the most transparent manner, about settlement procedures that lead to (visual) interventions on highly visited websites such as the contentious website. By definition, the journalistic publications on this contentious website target a broad audience, and visitors to such a website have an interest in being informed about data protection-related aspects. Additionally, the Dispute Chamber points out that the representative of the complainant has publicly disclosed the complaint.

Pursuant to Article 108, § 1 of the WOG, an appeal against this decision can be lodged with the Market Court (Court of Appeal Brussels) within a period of thirty days from the notification, with the Data Protection Authority as the defendant. Such an appeal can be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Code of Civil Procedure. The statement of opposition must be submitted to the registry of the Market Court.

The statement must include, under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, if applicable, their capacity and their national register or company number;

3° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

FOR THESE REASONS,

the Dispute Chamber of the Data Protection Authority decides - based on Article 95, § 1, 2° of the WOG to validate the settlement as accepted by the settling party on November 24, 2023, under the conditions laid down and clarified in the present decision and its annex.

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in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit IT system of Justice (Article 32ter of the Code of Civil Procedure).

(get.) Hielke HIJMANS

Chairman of the Dispute Chamber

The statement with its annex is sent, in as many copies as there are parties involved, by registered mail to the clerk of the court or filed at the registry.

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Annex – settlement proposal

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Your reference

Our reference

Attachment(s)

Date

NOYB: C-062-10

DOS-2020-03281

1

20/10/2023

Subject: application of Article 95, § 1, 2° WOG – settlement proposal in the file with complaints from Mr. X regarding cookies at Mediafin (website de Tijd)

Dear,

The Dispute Chamber first refers to the letter that it previously sent to the defendant and complainant, notifying them that the Dispute Chamber intended to send a settlement proposal to the parties in the present file. This document contains this settlement proposal.

In the context of a large number of files awaiting processing by the Dispute Chamber, resulting in long processing times for all files, the Dispute Chamber has decided under Article 95 § 1, 2° of the Law Establishing the Data Protection Authority (“WOG”) to

Letter sent by registered mail on September 21, 2023.

B.S. January 10, 2018.

Dispute Chamber

Exclusively by email:

Attention: Mediafin

Havenlaan 86c, box 309, 1000 Brussels

Contact person: Mr. Y

Via email: [...]

Defendant

By email:

Attention: NOYB - European Center for Digital Rights, representative of Mr. X

Via email: [...]

Complainant

Secretariat

T: +32 (0)2 274 48 56

E-mail: litigationchamber@apd-gba.be

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to propose to proceed with a settlement in the aforementioned case through this letter (“settlement proposal”). The Dispute Chamber also takes into account the fact that a large number of complaints regarding cookies are currently under its consideration. Although the theme of “cookies” is among the priorities of the Data Protection Authority, the Dispute Chamber must carefully choose how to handle its cases so that it can address various socially relevant (complaint) cases with the necessary urgency. The Belgian legislator has emphasized the need for the Dispute Chamber to act selectively in order to ensure effective enforcement.

This settlement proposal is made without any detrimental acknowledgment and does not bind the Dispute Chamber in any way regarding a potential position on the refusal of the settlement proposal. The Dispute Chamber specifically refers to its powers to determine whether or not violations have occurred and, if necessary, to make use of the sanctioning powers granted to it under European and Belgian law. In this case, it is within the possibilities of the Dispute Chamber to continue the case – in the event of a refusal or when the Dispute Chamber withdraws the settlement proposal – in another manner.

When the party to whom the settlement proposal is addressed explicitly refuses the proposal, the Dispute Chamber will continue the case.

a) Procedural positioning of the settlement proposal and the settlement

The settlement proposal currently before us is situated within the “procedure prior to the substantive decision” provided for by the legislator at the Dispute Chamber. The Dispute Chamber does not take a position here and now regarding the necessity of any investigative measures by the Inspection

Service, nor the necessity to continue the case (thereafter) in accordance with the provisions of Article 95 WOG.

11 See the press release from the Data Protection Authority on this matter, available at: <https://www.gegevensbeschermingsautoriteit.be/burger/de-gba-stelt-haar-prioriteiten-voor-het-jaar-2023-vast>.

12 Belgian Chamber of Representatives, Explanatory Memorandum to the Draft Law for the establishment of the Data Protection Authority, Doc. 2648/001 (Legislative Period 54), available at: <https://www.dekamer.be/kvvcr/showpage.cfm?section=flwb&language=nl&cfm=/site/wwwcfm/flwb/flwb.n.cfm?lang=N&legislat=54&dossierID=2648>, 51; see also: E. Degraeve, "Title 11. Control Authority" in C. DE TERWANGNE and K. ROSIER, *The Regulation on the Protection of Data (GDPR) – 1st edition*, Larcier, 2018, (593)607: "[The control authority] can thus exercise its control missions and assess the follow-up to be given to any complaints that are addressed."

13 See Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

14 See Article 100 WOG.

15 See section 6.3.2. and Articles 94-97 of the WOG.

16 Cf. Article 94, 1° and 2° WOG; also compare the mention in the notification dated 21/09/2023 to the parties: "This notification interrupts the period as referred to in Article 96, §1 WOG of 30 days for the Inspection Service to act until the moment the Dispute Chamber determines that the settlement proposal does not lead or cannot lead to an actual settlement."

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Since the procedure for the Dispute Chamber of the Data Protection Authority cannot be equated with the procedure of criminal law, "the settlement" as provided by the Belgian legislator under Article 95 §1 2° WOG cannot be equated with the "amicable settlement" from criminal law. The settlement in the sense of the WOG indeed has a sui generis character.

Furthermore, the Dispute Chamber specifies the precise facts framed in time and space that give rise to the settlement proposal (*infra*). Although the Dispute Chamber, as previously mentioned, does not make a ruling here and now on the existence of infringements, it must rely on the elements present in the file to proceed to the settlement proposal. These are the elements that the complainant experienced as harmful. The settlement proposal thus relates to certain facts within a specific time frame and within a certain (technical) context, whereby facts that exceed this time frame and context do not fall within the scope of the settlement. If a settlement is reached, it will pertain to the elements as presented in the grievances of the complaining party, specifically between the moment of filing the complaint and the date of the formal settlement decision. The contentious period concerns only that between the date of filing the complaint and the date of the formal settlement decision that follows this settlement proposal.

In general, the Dispute Chamber frames the settlement procedurally as follows:

1. The settlement under the WOG is a settlement between:

- On the one hand, the Dispute Chamber, which commits to terminating the procedure, whereby it refrains from potentially imposing corrective measures,
- And on the other hand, the defending party, which commits to paying a sum of money and/or complying with certain conditions.

2. The settlement fundamentally implies an acknowledgment of the facts by the settling party, but does not constitute an acknowledgment of a violation of the applicable legislation.

3. The scope of the settlement is in all cases limited to the facts and the time frame expressly mentioned in the settlement proposal, respectively the settlement.

17 See in particular Articles 216bis and 216ter of the Code of Criminal Procedure regarding the extinguishing of public prosecution concerning certain infringements by fulfilling certain conditions such

as paying a sum of money, as well as agreeing to and implementing certain measures; A. RIGLOLET, *Contrat de transaction*, Larcier, Brussels, 2021; A. RAES, T. VAN WYNSBERGE, S. DE KEULENAER, E. DEVEUX, K. DECRAMER, A. DELADRIERE, “The expanded amicable settlement: a ‘value-added’ or ‘win-win’ situation? Evaluation of the practice.”, *Panopticon*, no. 36(2), 2015, (88); M. FERNANDEZ-BERTIER and N. VAN DER EECKEN, “The expanded criminal transaction declared unconstitutional: towards a motivation of the transaction and sufficient and effective judicial control”, *Droit Pénal de l’Entreprise*, 2016, no. 3, (213)213.

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4. The complainant is heard in the establishment of a potential settlement following a complaint. The complainant is heard regarding their views on both the use of the settlement instrument in this case and the content of the settlement proposal on the other hand. The complainant has the opportunity to express their position regarding the proposed settlement, no later than 14 days after receiving the settlement proposal. This period does not impede the possibility for both parties to obtain clarification regarding the settlement proposal in written or oral form (*infra*).

5. A settlement is formalized through a settlement decision, whereby the course of the procedure prior to the settlement is transparently outlined, and whereby the conditions from the settlement proposal and the ultimately agreed settlement conditions are expressly reiterated (in principle by referring to the settlement proposal, attached as an annex to the settlement decision).

6. All involved parties retain the right to, in principle, make written comments on the settlement proposal and its content.

7. A rejected or otherwise unsuccessful settlement does not affect the continuation of the file and has no impact on any alternative handling of the file.

b) Substantive conditions of the settlement proposal

b.1) De Tijd (www.tijd.be)

b.1.1) First grievance of the complainant in their complaint dated July 18, 2023

First grievance of the complainant in their complaint dated July 18, 2023:

“Violation type 1: No ‘refusal’ option at the first information level of the consent banner.” To support this grievance, the complainant attaches the following two screenshots in the annex:

1. Complaint, annex 2

18 In light of Article 77 of the General Data Protection Regulation, the complainant has a broader role than in settlement procedures with other regulators, see e.g. the mere notification to the complaining party in the settlement procedure at the Belgian Competition Authority, cf. Article IV.59 in fine of the Economic Law Code of February 28, 2013 (B.S. March 29, 2013).

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2. Complaint, Annex 3

Prima facie relevant elements from policy positions and documents of the Data Protection Authority.

1. The positions of the “Cookie Banner Taskforce” of the European Data Protection Board¹⁹ and the press release from the Data Protection Authority.²⁰ An excerpt from that press release:

¹⁹ European Data Protection Board, January 18, 2023, Report of the Work undertaken by the Cookie Banner Taskforce, available in English at: https://edpb.europa.eu/our-work-tools/our-documents/other/report-work-undertaken-cookie-banner-taskforce_en

²⁰ Press release Data Protection Authority, February 10, 2023, “Cookie banners: the EDPB publishes examples of non-compliant practices,” available at <https://www.gegevensbeschermingsautoriteit.be/burger/nieuws/2023/02/10/cookiebanners-de-edpb-publiceert-voorbeelden-van-niet-conforme-praktijken>.

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“Absence of a ‘reject all’ button at the same level as the ‘accept all’ button. Most data protection authorities, including the GBA, considered this a violation and that the user of a website must

simultaneously have the option to accept or refuse the placement/reading of cookies on their device.”

2. The “cookie checklist”²¹ of the Belgian Data Protection Authority

“I do not provide an ‘accept all cookies’ (or similar) button without providing a ‘reject all non-essential cookies’ (or similar) button at the same ‘layer’.”

Proposal condition one settlement proposal:

The defendant shall provide an “opt-out all” option on the website of “De Tijd” at the same location where “agree and close” is currently indicated, within one month of the date of the settlement decision, or implement a practice of equivalent effect within the same period. The technical adjustments made by the defendant in this regard shall be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber and the complainant. Both the execution of the technical implementation and the preparation and forwarding of the document that reflects the implementation shall be completed within the month following the settlement decision.

b.1.2) Second grievance of the complainant in their complaint dated July 18, 2023

Second grievance of the complainant in their complaint dated July 18, 2023:

“Violation type 2: Misleading button colors, specifically, the complainant states that using a different and more eye-catching color for accepting cookies would constitute a violation of the relevant legislation. To support this grievance, the complainant includes the following two screenshots in the annex:

1.

Complaint, Annex 2

21 Attached to this settlement proposal is a copy of this “cookie checklist”; until publication on the website, this document is confidential.

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2. Complaint, Annex 3

Prima facie relevant elements from policy positions and documents of the Data Protection Authority.

1. The “cookie checklist” of the Belgian Data Protection Authority

I do not use techniques that can be classified as “deceptive design”²² (e.g., nudging through color use).

2. The positions of the “Cookie Banner Taskforce” of the European Data Protection Board and the press release from the Data Protection Authority. An excerpt from that press release and from the Taskforce report of January 17, 2023, respectively:

22 See also our earlier press release: <https://www.gegevensbeschermingsautoriteit.be/burger/nieuws/2023/02/24/deceptive-design-patterns-hoe-deze-op-sociale-netwerken-te-herkennen-en-te-vermijden>
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Misleading Design. The task force draws attention to various types of misleading practices regarding the formatting of banners.

To assess the conformity of a banner, a case-by-case verification must be carried out to check that the contrast and colors used are not obviously misleading for the users and do not result in an unintended and, as such, invalid consent from them. Consequently, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features manifestly contrary to the provisions of the e-Privacy Directive have been identified.²³

Proposal Condition Two Settlement Proposal:

The defendant commits to ensuring that the option where a “reject all” option—following the potential acceptance of Condition 1 of this settlement proposal—does not appear less (visually) attractive than the partial or full acceptance for the placement of non-essential cookies, and this within one month after the settlement decision. The technical adjustments made by the defendant in this regard will be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber

and the complainant. Both the implementation of the technical adjustments and the preparation and forwarding of the document reflecting the implementation will be completed within one month after the settlement decision.

b.1.2) Third Complaint of the Complainant in their Complaint dated July 18, 2023

Third complaint of the complainant in their complaint dated July 18, 2023:

“Violation Type 3: it is not as easy to withdraw consent as it is to give consent.” To support this complaint, the complainant includes the following two screenshots in the attachment:

1.
Complaint, Attachment 4

23 Original text in English: In order to assess the conformity of a banner, a case-by-case verification must be carried out in order to check that the contrast and colours used are not obviously misleading for the users and do not result in an unintended and, as such, invalid consent from them. As a result, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features manifestly contrary to the e-Privacy Directive provisions have been identified.

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Prima Facie Relevant Elements from Policy Positions and Documents of the Data Protection Authority.

1. The “cookie checklist” of the Belgian Data Protection Authority:

I foresee a mechanism to withdraw consent as easily as it is to give it, such as by placing a clearly visible link or button where cookie settings can be managed and consent can be withdrawn with one click;

2. The positions of the “Cookie Banner Taskforce” of the European Data Protection Board and the press release from the Data Protection Authority.

An excerpt from the Taskforce report of January 17, 2023:

In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and under Article 5(3) of the e-Privacy Directive, three additional cumulative conditions are mandatory: (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as giving consent.²⁴

Proposal Condition Three Settlement Proposal: The defendant commits to developing and implementing, within a period of one month, a mechanism on the website of “De Tijd” that meets the requirements set forth in the aforementioned policy documents; the defendant also commits that withdrawing consent does not involve more steps (in terms of “clicks”) than necessary for giving consent. This will occur through an equivalent number of steps once the end user has reached the cookie settings page; this page must be clearly accessible on every page of the disputed website.

24 In addition to the requirements for the collection of consent to be valid in accordance with the GDPR and under Article 5(3) e-Privacy Directive, three additional cumulative conditions are mandatory (i) the possibility to withdraw consent, (ii) the ability to withdraw consent at any time, (iii) withdrawal of consent must be as easy as to give consent.

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c) Written and oral exchanges with parties

c.1.: written exchanges

The settlement proposal serves as the starting point for the settlement procedure. However, the conditions of this proposal may be clarified or otherwise adjusted during the further course of the settlement procedure, especially in cases where such adjustments bring improvements in light of data protection legislation. Such requests do not imply an automatic extension of the deadline.

The parties shall, in principle, contact the Dispute Chamber in writing when they deem it useful to make certain adjustments to the conditions of the settlement proposal. It is up to the Dispute Chamber to make an adjustment to the settlement proposal based on this communication from the parties.

In this regard, a constructive attitude from the parties is encouraged. The Dispute Chamber expects requests to be made in a reasonable and proportional manner. When the requests, in the view of the Dispute Chamber, indicate that a settlement is unlikely, this may lead to the withdrawal of the settlement proposal.

c.2. oral exchanges

Both parties may submit a request for an oral explanation regarding the settlement proposal or subsequent communications to the Dispute Chamber, with the Dispute Chamber being responsible for assessing the relevance of such oral exchanges. It goes without saying that this is a favor and that the Dispute Chamber offers this solely for the sake of an efficient process.

A record will be drawn up that, in principle, only documents the occurrence of the oral explanation moment.

Both parties are free to participate in oral explanation moments organized by the Dispute Chamber. The discussions are confidential. No information regarding the content of the discussions may be disclosed to third parties.

25 "Settlement discussions" are a well-known legal practice within the regulatory landscape, particularly compare the procedure at the Belgian Competition Authority in Articles IV.55 et seq. ("Subsection 4 – Settlement Procedure") of the Economic Law Code of 28/02/2013 (B.S. 29/03/2013) and the mention of such settlement discussions therein.

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d) Deadline

Mediafin must respond within 30 days of receiving this settlement proposal. The (representative of the) complainant may take a position regarding the initial settlement proposal and the underlying conditions within 14 days of receiving this letter.

e) The existence of other controllers and/or processors

This settlement proposal is directed solely at Mediafin. It does not take a position on whether and to what extent there are other actors responsible for the potential infringements that led to this settlement proposal.

f) Validation of the settlement

When the settlement proposal becomes a formal settlement decision through explicit acceptance by the party to whom the settlement proposal is directed within the aforementioned deadline, an appeal may be lodged against it by any "aggrieved party."²⁶

The final settlement does not prejudice the right of any individuals [ERRATUM] who have suffered damage to claim compensation in a civil court based on, among other things, Article 82 GDPR.

g) Appeal against the settlement proposal

Pursuant to Article 108, § 1 of the WOG, an appeal may be lodged against this decision to make a settlement proposal within a period of thirty days from the notification to the Market Court (Court of Appeal Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Judicial Code²⁷. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W., or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

26 Pursuant to Article 108, § 1 of the WOG, an appeal may be lodged against this decision within a period of thirty days from the notification to the Market Court (Court of Appeal Brussels), with the Data Protection Authority as the defendant.

Such an appeal may be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Judicial Code. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W., or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

27 The statement must mention under penalty of nullity:

7° the day, month, and year;

8° the name, first name, residence of the applicant and, where applicable, their capacity and their national register or company number;

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the statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W., or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

Yours sincerely,

Hielke Hijmans

Chairman of the Dispute Chamber

9° the name, first name, residence and, where applicable, the capacity of the person to be summoned;

10° the subject and a brief summary of the grounds of the claim;

11° the judge before whom the claim is brought;

12° the signature of the applicant or their lawyer.

28 The statement with its annex must be sent, in as many copies as there are parties involved, by registered mail to the clerk of the court or filed at the registry.